

Shanti Devi Srivastava v. State of U.P.

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 7 July 2022 · WRIT - C No. - 4174 of 2022 ·
Writ disposed; billing dispute left to Executive Engineer under clause 6.5

HEADNOTE

A billing dispute is cognizable before the Executive Engineer, Rahim Nagar, Lucknow under clause 6.5 of the U.P. Electricity Supply Code, 2005. The writ was disposed of with liberty to represent against the bill within 15 days, the representation to be decided preferably within two weeks and communicated without delay. If that representation is filed in terms of the order, supply shall not be disconnected until the decision.

FACTUAL SUMMARY

Shanti Devi Srivastava approached the Lucknow Bench in Writ-C No. 4174 of 2022 against the State of Uttar Pradesh, through the Principal Secretary (Energy), and two others, over an electricity bill. On 7 July 2022 counsel for the petitioner and for opposite parties 2 and 3 were heard. The dispute was treated as one for the Executive Engineer, Rahim Nagar, Lucknow. The order states no billed amount, period, meter detail, or earlier objection to the licensee.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Billing dispute relegated to the Executive Engineer

HOLDING

The billing grievance is cognizable before the Executive Engineer, Rahim Nagar, Lucknow under clause 6.5 of the U.P. Electricity Supply Code, 2005. The petitioner may represent against the electricity bill within 15 days; if so filed, the representation shall be decided expeditiously, preferably within two weeks, and the order communicated without delay. Until that decision, and only if the representation is filed in terms of the order, the electricity supply shall not be disconnected. The writ petition is disposed of on that basis. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ on a billing dispute was disposed of, leaving the petitioner to a representation under clause 6.5 rather than deciding the bill. ¶ 1

clause-6.5-representation-executive-engineer Liberty was given to represent against the electricity bill to the Executive Engineer, Rahim Nagar, Lucknow, within 15 days, for a decision preferably within two weeks. ¶ 1

6.5-representation-as-appropriate-remedy Clause 6.5 was treated as the forum in which the billing grievance is cognizable, and the petition was closed on that remedy. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS AND QUANTIFICATION OF THE ELECTRICITY BILL

Left to the Executive Engineer if a representation under clause 6.5 is filed within 15 days. ¶ 1